

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

Appellate No. SYN-CA4-26-CV-4103 District Case No. SYN-DSC-26-CV-0107 Certificate of Record Completion and Record Index Filed February 9, 2026

The district clerk certifies that the electronic record designated for this interlocutory appeal is complete as of February 9, 2026. The appeal concerns the January 23 preliminary injunction and the related January 28 denial of a district stay. The underlying civil action remains open. This certification neither converts the preliminary order into a final judgment nor transmits materials created outside the district proceedings.

The record begins with the verified complaint, the City's answer, and the municipal enactment materials. It includes Ordinance N-2025-18 with Form PS-1 and its fee schedule; the staff report, meeting minutes, and legislative history; and the parks department's pilot permit and enforcement history. These materials identify the forty-five-day filing rule, the \$240 event charge, the \$45 paid-speaker assessment, the requested names, topics, and times, the written-reasons requirement, and the documented-risk criteria that the parties dispute.

The supporting factual materials include declarations from the Guild's executive director, a member bookseller, and its fair logistics organizer; declarations from the City's parks and events director and police logistics officer; and the site photographs, map, calendar, reservation excerpts, and dispatch abstracts admitted for the preliminary-injunction record. The index reflects the documents as filed and does not adopt either party's characterization of peaceful event history, ordinary congestion, staffing needs, program flexibility, or economic burden.

The motion sequence consists of the Guild's January 5 preliminary-injunction motion and memorandum, the City's January 14 opposition, the Guild's January 16 reply, and the January 16 stipulation of facts and alternatives chart. The January 19 hearing transcript follows those submissions. The January 23 memorandum opinion and preliminary-injunction order completes the merits portion of the interlocutory record. The transcript and order are transmitted in their entirety, including the court's findings, discussion of the four preliminary-relief factors, operative restraint, and treatment of security.

The stay sequence consists of the City's January 26 motion for a district stay pending appeal, the Guild's January 27 opposition, the City's January 28 reply, and the January 28 order denying a stay. Those papers permit the appellate court to evaluate whether the City first sought relief below and how the originating court assessed the requested suspension. They do not include any appellate Rule 8 motion or later appellate order.

The initiation materials consist of the City's January 29 notice of appeal, the January 30 certified district docket, and this certificate and index. The notice invokes 28 U.S.C. § 1292(a)(1). No party designated material beyond the twenty-four items listed in this index, and no sealed or ex parte material is included. The clerk has not excluded a designated item on confidentiality grounds.

No additional transcript is required for this appeal. The January 19 hearing is the only reported proceeding relevant to the preliminary injunction and has been filed in written form. Routine conferences not recorded on the docket did not generate a transcript. If the court of appeals requests a supplement, the district clerk will respond by separate certification rather than silently altering this completed index.

The ordered record comprises: L01 verified complaint; L02 City answer; L03 paid-speaker ordinance, application, and fee schedule; L04 staff report, minutes, and legislative history; L05 pilot permit and enforcement history; L06 Guild executive-director declaration; L07 member bookseller declaration; L08 fair organizer declaration; L09 City parks and events director declaration; L10 police logistics declaration; and L11 site photographs, maps, 2026 calendar, reservation excerpts, and dispatch abstracts.

It continues with L12 preliminary-injunction motion and memorandum; L13 City opposition; L14 Guild reply; L15 stipulated facts and alternatives chart; L16 preliminary-injunction hearing transcript; L17 memorandum opinion and preliminary-injunction order; L18 City district-stay motion; L19 Guild district-stay opposition; L20 City district-stay reply; L21 district-stay denial; L22 notice of appeal; L23 certified district docket; and L24 this record certificate and index. The L-numbers are index locators used in this certificate, not docket-entry numbers or printed page labels.

The clerk has verified that each listed electronic object opens, that its docket identity matches the source entry, and that the sequence preserves the record presented to the district court before the challenged rulings. Substantive pagination will be assigned in the joint appendix prepared under the appellate court's schedule. This certificate does not preapprove any party's citations or resolve whether a proposition is supported by a particular page.

Certified and transmitted February 9, 2026, by the Clerk of the United States District Court for the District of South Carolina to the Clerk of the United States Court of Appeals for the Fourth Circuit. Counsel for the City of Norvale and the Piedmont Booksellers Guild received electronic notice of the completed record on the same date.